



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 31 1990

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9989
(CORRECTED COPY)

1. E.I. duPont de Nemours & Co., Inc., Wilmington, Delaware, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain corrosive liquids for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of certain corrosive liquids inside a DOT Specification 12P fiberboard box containing one DOT Specification 2U polyethylene container and two non-DOT specification polyethylene containers, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on E.I. du Pont de Nemours & Company's application dated May 6, 1988, and additional information dated May 31, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon and supplemental letter dated January 9, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class). Corrosive liquid, n.o.s. (contains aluminum chloride and acetic acid); Potassium hydroxide solution; classed as corrosive material; Acetic Acid solution greater than 10%; Gluteraldehyde greater than 7.9% mixed with gluteraldehyde-bis-sodium bisulfite greater than 14.9%, classed as corrosive materials; other corrosive liquids which have been identified to and acknowledged in writing by the Office of Hazardous Materials Transportation (OHMT) prior to first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). Corrosive liquid, n.o.s. or Potassium hydroxide solution, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.245

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 12P fiberboard box and liners (of 350-pound test doublewall corrugated fiberboard) with inside container consisting of one DOT Specification 2U polyethylene container of not over five-gallon capacity, plus one or two non-DOT specification polyethylene containers not over 64-ounce capacity. Bottom flaps of box are sealed by means of hot melt adhesive and top flaps are closed with 3"-wide pressure sensitive tape.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. September 30, 1991.

Issued at Washington, D.C.:

Alan I. Roberts
Alan I. Roberts

Director

Office of Hazardous Materials
Transportation

JAN 31 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA